

The U.P. Cinematograph Rules, 1951

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State of Uttar Pradesh - Act

The U.P. Cinematograph Rules, 1951

UTTAR PRADESH

India

The U.P. Cinematograph Rules, 1951

Rule THE-U-P-CINEMATOGRAPH-RULES-1951 of 1951

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The U.P. Cinematograph Rules, 1951

1.

Title, commencement and extent.

- (i) These Rules shall be called the Uttar Pradesh Cinematograph rules, 1951.

(ii)

They shall come into force with effect from February 1, 1951

(iii)

They shall apply to all cinemas in Uttar Pradesh.

2.

Definitions.

- In these rules unless there is anything repugnant in the subject or context:

(i)

"Act" means the Cinematograph Act, 1918, as amended from time to time;

(ii)

"Auditorium" means that portion of the licensed premises where accommodation is provided for the public to view the exhibition of films;

(iii)

"Cinemas" means the entire place licensed for cinematograph exhibition and includes all appurtenances, plant and apparatus located therein;

(iv)

"Government" means the Government of Uttar Pradesh;

(v)

"License" means a written authorization by the Licensing Authority to give cinematograph exhibitions and granted in the form set out in Appendix I to these rules and shall be subject to necessary modifications or amplifications in accordance with any terms or conditions imposed under sub-section (3) of Section 5 of the Act;

(vi)

"Licensee" means a person who has been granted a license and includes his agent appointed for the purpose under a power of attorney and whose appointment has been intimated in writing to the Licensing Authority;

(vii)

"Licensing Authority" means an officer appointed such by the Government by notification in the official Gazette, for specified area;

(viii)

"Permanent building" means a building, which is constructed for permanent use with stone, mud, brick, mortar, cement or other non-inflammable material;

(ix)

"Protection room" means that portion of the cinema in which the cinematograph machine is erected;

(x)

"Special Cinematograph exhibition" means a cinematograph exhibition given on specified occasion or occasions at a place not ordinarily used for such purpose;

(xi)

"Temporary building" means a building which is not a "permanent building" and includes a both, tent or similar structure;

(xii)

"Temporary enclosure" means that portion of a place licensed for special cinematograph exhibition or of a traveling cinema, where cinematograph apparatus is kept or erected or where films are stored and wound;

(xiii)

"Winding rooms" means that portion of the cinema in which cinematograph films are stored and wound.

3.

Application for construction a building.

(1)

A person desirous of construction a permanent building to be used for cinematograph exhibition shall submit an application specifying the site on which the proposed building is to be constructed together with a plan and specifications thereof to the officer authorized in this behalf by Government.

(2)

The plan mentioned in the aforesaid sub-rule shall contain the elevations and sections of the buildings, the proposed electrical installations, arrangements for ventilation, sanitation and parking of vehicles and the position of the premises in relation to adjacent premises and public through fares on which the building abuts, within a radius of one furlong.

(3)

The licensing Authority may, if it is satisfied that the site plans and specification fully conform to the rules grant to the applicant a certificate signifying his approval thereto. The period within which the construction shall be completed shall also be stated in the certificate.

4.

Application for a license.

- An application for the grant of a new license for cinematograph exhibition shall be made to the Licensing Authority and shall contain full particulars of the ownership of the premises and the cinematograph machine and shall be accompanied with the following documents-

(a)

The order or approval of plan under Rule 3 (1);

(b)

Plan of the building and premises containing the specification enumerated in sub-rule (2) of Rule 3

(c)

Plan of seating arrangements for each class, separately;

(d)

Certificate from the Electrical Inspector to Government that the electrical installations conform to the required standards and the existing rules;

(e)

Certificate from the Medical Officer of Health having jurisdiction that the arrangements for sanitation conform to the requirements of the existing rules; and

(f)

Certificate from the Regional Fire Officer having Jurisdiction that the arrangements for fire-fighting appliances provided and the precautions taken against fire conform to the requirements of the existing rules.

5.

Inspection by Electric Inspector.

- For the purposes of giving a certificate mentioned in clause (d) of the preceding rule, the Electrical Inspector shall inspect the building and the requirements of the said clause may be temporarily dispensed with by the Licensing Authority where the Electrical Inspector, on receipt of a written request from the applicant, has for six weeks i there from, been unable to carry out the inspections.

6.

Inspection by Medical Officer of Health and Regional Fire Officer.

- The Medical Officer of Health and the Regional Fire Officer shall likewise, before giving a certificate make an inspection within six weeks after the receipt of a written request, the requirements as to the filling of their certificates may be temporarily dispensed with by the Licensing Authority.

7.

Conditions for granting and renewing a license.

(1)

No License shall be granted or renewed in favour of any person unless (i) he or his agent appointed for the purpose referred to in Rule 2 (vi) is residing in the city, town or area within whose limit the cinematograph exhibition is intended to be given, and (ii) the licensing authority is satisfied that the requirements of those rules have been fully complied with.

(2) No building, except one already licensed for cinematograph exhibition before August 1, 1974, shall be so licensed-

(a)

if it is situated within a radius of 200 meter from the Raj Bhawan, the State Secretariat, the High Court, the State Public Service Commission or the Board of Revenue; or

(b)

if it is situated within a radius of 75 meter from-

(i)

any recognised educational institution (other than primary school) or any residential institution attached thereto; or

(ii)

a public hospital with 25 or more indoor patients; or

(iii)

any building housing an office of a head of the department of the Central or the State Government or the district civil of criminal courts: or

(iv)

any other institution which the Government may consider necessary in public interest to declare an institution to which this clause applies; or

(c)

if for any other sufficient reason to be recorded, the licensing authority is satisfied that the location of a cinema at the site of that building is not public interest:

Provided that the licensing authority shall not refuse a license under clause (c) except with the prior approval of the State Government.

Explanation. - For the purpose of this sub-rule, the licensing authority shall, subject to the general control of the State Government, determine what is a public hospital or a recognised educational institution, and its decision shall be final and conclusive.

8.

Requirements of permanent buildings.

- A permanent building shall inter alia fulfill the following requirements:

(i)

it shall be provided with an efficient lightning conductor;

(ii)

if entirely detached the minimum distance between it and other buildings shall be not less than 20 feet with a free all-round space so as to enable the audience to disperse quickly in the event of a fire and to permit easy access to fire engines and fire fighting appliances:

(iii)

in not entirely detached, it shall about on two or more different ways or open spaces shall have sufficient width to enable the audience to disperse quickly in the event of fire and to permit easy access to fire engines or other fire fighting appliances:

Provided that one of the above means of exit shall have a clear width of 35 feet including the footpath and shall be thoroughfare;

(iv)

The frontage shall be of adequate length and the building shall have verandahs on two sides;

(v)

if accommodation is meant to be provided for more than 1000 persons, its distance from other buildings shall be such as THE Licensing Authority may by a special written order require;

(vi)

it shall not be constructed under or on the top of any other building without the special written sanction of the Licensing Authority;

(vii)

where it is in close proximity of another building, a wall or other structure of fire-resisting material in a manner approved by the Licensing Authority shall separate it there from, whose decision as to whether any building is in close proximity shall be final. No opening in the walls or in any part of the building as may be likely to communicate fire to a neighboring building shall be made:

(viii)

the distance between the floor of the auditorium and the ceiling or any covering immediately above shall not be less than 12 feet;

(ix)

the landings, doors, staircases, lobbies and corridors shall be not less than 4 feet 6 inches in width if accommodation is meant for 400 persons or less and not less than 6 feet in width when accommodation is provided for more than 400 persons:

Provided that for the purposes of the sub-rule, the balcony shall be treated as a separate accommodation but for the ground floor the total seating capacity of the auditorium shall be taken into consideration;

(x)

all staircases shall be constructed of non- inflammable material with stapes not less than 10 inches wide and more than 7 inches high. Each flight shall have not more than 15 and not less than 3 steps;

(xi)

the floor of all landings, staircase, passages and gangways shall be of sufficient strength to carry 120 lb. live load per square feet and shall be constructed of fireproof material;

(xii)

every staircase forming an exit from an upper story to the ground floor shall have on both sidewalls of bricks or other fire-resisting material in the stores through which it passes and no opening shall be made into the auditorium except when required for an exit from the upper story, which it serves. The staircase leading to the upper story may, however, on one side, instead of a wall, be provided with extra stout handrails or balusters. Enclosed staircases except on platforms and landings with a length exceeding the width of the stairs shall have on both sides strong handrails firmly secure to the walls by strong metal led brackets sunk into the walls to a depth of three inches. For all upper storeys intended for use by the public there shall be provided at least two staircases;

(xiii)

Stairs turning at angles shall have a proper landing at each turn and no wonders shall be introduced; all landings shall be provided with emergency lights;

(xiv)

Where possible gradients or inclined floors shall be used instead of steps, but no gradient or inclined floor shall be steeper than 1 in 10;

(xv)

all exit doors for the use of the public in cinemas already in existence shall be not less than 7 feet in height and 4 feet 6 inches in width, and not less than 7 feet 6 inches in height and 5 feet in width in cinemas licensed after the coming into force of these rules, the width being measured between levees of the doors in open position. The doors shall open outwards and when open shall not obstruct any gangway, passage, staircase landing or lobby, but rest flush against the walls;

(xvi)

cloak rooms where provided shall be so situated that their use causes no obstruction to the free use of any existing corridor or other passage for exit of the audience.

9.

Licence for permanent building.

- A licence for cinematograph exhibition may be granted by the Licensing Authority in respect of permanent building for a period not exceeding three years, renewable on expiry for a similar period of not more than three years at a time.]

10.

Every licence granted prior to the publication of these rules in the official Gazette shall be deemed to terminate within three months after the date of such publication unless the period of the licence expires before that date:

Provided that the proportionate amount of the licence fee shall, if the period exceeds one month, be refunded to the nearest anna. The application for refund in such cases should be submitted to the Licensing Authority within a period of three months from the date of the termination of the licence.

11.

Electrical requirements.

- In addition to the electrical requirements specified in Rule 8, the licensee shall comply with the provisions of the Indian Electricity Act, 1910, and the rules framed there under so far as the same are applicable to the cinema.

12.

Ventilation.

(1)

all parts of a permanent building be shall properly and sufficiently Ventilated.

(2)

Unless the auditorium of a permanent building is air conditioned, it shall in addition to natural ventilation be provided with sufficient number of power-driven exhaust fans suitably located and of adequate size, at least one large size exhaust fan being provided for every 150 persons.

The number and size of such fans shall be approved by the licensing Authority and shall be entered in the licence. All exhaust fans shall be kept working during performances except when the air-conditioning plant, if any, is working.

(3)

When windows or skylights which provide internal ventilation have to be darkened or obscured, free permanent ventilation shall also be provided through ridge or ceiling ventilators. The clear opening of such ventilation shall be not less than one square foot for every ten Persons accommodated:

Provided that the Licensing Authority may relax the condition in the case of buildings already constructed and having sufficient ventilation otherwise, if the extra ventilation is likely to prove very expensive.

(4)

Except in the case of air-conditioned buildings, ceiling and bracket fans, in such numbers and of such size as may be approved by the Licensing Authority, shall be provided in addition to exhaust fans.

(5)

If more than one exhibition is given on any day, the entire auditorium shall be flushed with air for at least fifteen minutes before each exhibition and shall be aired thoroughly. No Spectator shall be permitted to be present in the auditorium during this period.

13.

Sanitation.

- (i) The premises shall be kept clean and the auditorium shall be swept and cleaned before each exhibition.

(ii)

Latrine and urinals separately for men and women, at different places, and of a suitable type and design shall be provided.

(iii)

There shall be not less than one latrine seat for every 100 person or less and not less than one place for urinating for every 50 persons or less of total seating accommodation: Provided that at least one latrine seat and two places for urinating shall be provided for women.

(iv)

The latrine shall be cleaned and flushed immediately before and after each exhibition and shall be properly washed with a disinfectant at least twice a day. (v) in the case of a water-flushed latrine or urinal a separate water reservoir of adequate capacity shall be provided for flushing.

(vi)

the management may, subject to the direction issued in this behalf by the District Magistrate, refuse admission to or eject persons known to be suffering from a contagious, loathsome or infectious disease.

(vii)

the rooms, passages and staircase of all permanent buildings shall be time wished and all iron and wood-work of such a building shall be cleaned or varnished at least once every year and shall at all times be kept clean and free from dirt.

(viii)

the doors and windows of the halls of the building shall be left open for at least three hours every morning, and for half an hour between shows. During the half hour intervals between the two shows the auditorium shall be disinfected with an aerosol approved by the Medical Officer of Health. The auditorium shall be swept, cleaned and disinfected every morning.

(ix)

the Medical Officer of Health shall be responsible for periodical inspections of all cinemas licensed under the Cinematograph Act, 1918 (II of 1918), situated within the municipal limit to see that sanitary conveniences and arrangements for making the premises clean as provided under the rules are being complied with and any instructions given in this regard as laid down in the rules shall be complied with by the management within the time specified.

14.

Seating accommodation.

- (i) The Licensing Authority shall determine the maximum number of seats for each class separately and the same shall be specified in the licence and prominently displayed neat the entrance door to every class the cinema.

(ii)

Except ground floor and first floor no other floor for seating shall be permitted in permanent cinema buildings.

(iii)

The seating shall be arranged as to leave free access to the exits.

(iv)

The seating space assigned to each person shall be not less than 18 inches. Seat shall have back supports and armrests for each person.

(v)

The rows of seats shall be so arranged as to leave a clear space of not less than 15 inches between the back of any seat and the foremost portion of the seat in the row behind measured between perpendiculars.

(vi)

All seats except in the boxes, shall be securely fixed to the floor or shall be firmly secured together in complete lengths; the complete line shall be firmly attached to the floor. Seating on the floor will not be allowed in permanent building.

(vii)

The distance between the front row of the seats and the screen shall not be less than 19 feet.

15.

Exits.

- A clear gangway not less than three feet wide shall be kept all round and not less than four feet wide in the centre; and shall be so arranged that no seat shall be so arranged that no seat shall be more 10 feet from gangway:

Provided that in an auditorium of less than 30 feet in width the centre gangway may be omitted. Temporary seats must on no account be placed in the gangways.

(i)

The licensing Authority may, having regard to the large number of seats in an auditorium, require that a gangway or gangway of a specific width, shall be provided parallel to the rows of seats to secure direct access to exits.

(ii)

An adequate number of clearly indicated exit doors, as may be determined by the Licensing Authority, shall be provided to afford safe and speedy egress for the audience.

(iii)

All doors through which the public must pass in using stairway corridor or other passage for exit shall remain unbolted during the entire period of the exhibition.

(iv)

Passages, gangways, corridors, landings and lobbies shall be kept free from all obstruction at all times to enable quick egress.

(v)

Walls of passages, gangways or corridors shall not have any recess nor shall there be any projection there from within 6 feet of the ground Light shall not be hung to a height less than 7 feet above floor level. Fire appliances are not included within the purview of this sub-rule.

(vi)

Two separate exits not leading into the same thoroughfare shall be provided to every floor or gallery and no stairway shall discharge into a passage or corridor against or across the direction of the exit; provided than the Licensing Authority may accept any other arrangements which likely to ensure adequate safety.

16.

Fire precaution.

- All such premises shall be in communication with the nearest fire bridge station if there is any, in that town by telephone which shall be fitted in such place and manner as the Licensing Authority may direct. The installation and maintenance of the complete telephone connection shall be carried out at the cost of the licensee.

17.

(1)

The following fire-extinguishing appliances shall be provided.

In the enclosure - A blanket, a bucket pf dry sand and a C.T.S. extinguisher of a pattern approver by the Licensing Authority.

(In the auditorium) - Four portable fire-extinguishers of a pattern approved by the Licensing Authority and supply of not less than five gallons of water per 100 square feet of floor are stored as follows:

Thirty-three per cent of the supply or 60 gallons whichever is greater, stored in buckets of two or three gallons capacity each inside the auditorium and the balance stored in tanks or cisterns or buckets of any capacity so arranged as to be easily accessibly, the arrangements in this regard having been approved by the Licensing Authority.

(2)

These appliances shall be so disposed as to be readily available for use. The buckets shall have round bottoms and handles. They shall be painted red with the word "Fire" painted on them in large black letters in English and the local

vernacular.

(3)

The portable fire-extinguishers shall be of the two gallon size; they shall be installed at an adequate height from the ground. A record regarding the maintenance of portable extinguishers shall be kept. Tetrachloride extinguisher shall not be permitted in the enclosure.

(4)

where a portable fire-extinguisher of the Chemical combination pressure type is older than three years or has not been tested previously it shall be tested by hydraulic pressure by the fire officer, to show that it can withstand for one minute a pressure of 350 lb, per square inch and a certificate of such test shall be submitted to the Licensing Authority, Similar tests shall be repeated annually.

(4-A) In addition to the fire-fighting equipment specified in sub-rule (1) the following equipment shall be provided and maintained:

At least 4 stirrup pumps and 8 buckets filled with water if there is no gallery or first floor in the premises; and at least 6 stirrups pumps and 12 buckets filled with water if there is a gallery or first floor in the premises in which case, at least 12 stirrup pumps and 4 buckets filled with water shall be kept in the gallery or first floor.

Attendants and staff shall be trained in the use of all fire-fighting equipment maintain in the premises.

(5)

The licensee shall - (i) Once in every three months empty the container of each portable fire-extinguisher provided in the licensed premises, clean its nozzles and working parts, still the liquids in it and top it up, immediately record the date having done so on a slip of paper and paste the same on the outside of such container; and

(ii)

Once in every year discharge each portable fire-extinguisher provide in the licensed premises and recharge it and immediately record the date of such recharge in durable paint on the external surface of the container of the portable fire-extinguisher.

(6)

In addition to the requirements of sub-rule (1) and sub-rule (4-A) there shall be provided such other facilities for fighting fire as may be required by the Licensing Authority.

18.

Prohibition of use of building for purposes other that of a cinema.

- No portion of a cinema shall be used as a restaurant, boarding house, shop, factory; workshop or manufactory, or for the purposes of storage or for the preparation or sale of food, drink except with the sanction of Licensing Authority and subject to such conditions and restrictions as may be imposed and specified by him in this behalf nor shall any portion of the cinema be used for residential purpose by day or night.

19.

Entry into projection room or winding room.

- No person other than the licence operator, the engineer-in-charge of the installation or the licensee shall be permitted to enter the projection room or the winding room during a performance.

20.

Prohibition on naked light and smoking in projection and winding room.

- No matches and candles or any other naked light shall be used nor shall smoking be permitted within the projection room or winding room. A notice bearing in red letters the words "smoking strictly prohibited" shall be prominently displayed in each of those rooms.

21.

Projection room.

- (i) No inflammable article shall unnecessarily be taken into or be allowed to remain in the projection room.

(ii)

(Combustible material) - No combustible material shall be allowed within the enclosure, and all necessary combustible materials when not in use shall be kept in fireproof receptacles suitable for the purpose, and of a type approved by the Regional fire Officer. The box shall be kept closed at all times except when it is necessary to obtain or place a film.

(iii)

Only films which are being used during the exhibition shall be kept in the projection room.

(iv)

The projection room shall be substantially constructed of fire-resisting material and shall be so placed as to be outside the main building forming the auditorium. Provided that in case of cinemas existing the time of commencement of these rules, this requirement may be expressly waived by the Licensing Authority. Before waiving the above requirement the Licensing Authority shall personally satisfy it self that the alternative arrangement proposed is such as will provide sufficient precaution against the extension of fire from the projection room or the auditorium.

(v)

The openings in front of the projection room for each projection machine shall not be more than three in number of which the middle one shall not exceed 8 inches square and the other shall not be more than 5 inches square. Each such aperture shall be provided with a fire proof plate glass screen not less than 5/ 16 inch thick fixed in position with some light joints.

(vi)

The entrance to the projection room shall be through a closely fitting self closing door of fire-resisting material suitable placed and opening outwards and all openings, bushes and joints shall be so constructed and maintained as to prevent, as far as possible, the escape of any smoke into the auditorium. This door shall be kept closed at all times when not used for ingress or agrees. Channels of ventilation shall not be allowed to communicate direct with the auditorium. The projection room shall be provided with an opening or vent flue in its roof or upper part of its side wall leading to the outside air. The vent flue shall have minimum sectional area of 50 square inches and shall be fire proof:

Provided that when the projection room is so constructed that it can open directly on the outside of the building through a window, such window shall be permitted for the comfort of the operators but such projection room shall not be exempted from the requirements of the installation of a vent flue as prescribed above. For the convenience of the operators one or more electric fans of suitable dimensions shall be provided by the licensee.

(vii)

The projection room shall be at least eight feet in height if one machine is to operated, the space shall not less than 489 square feet and an additional 24 square feet shall be provided for each additional machine to be operated. The width of the room shall be such as to provide sufficient space and easy passages for operators when passing behind the machine.

(viii)

The staircase for the projection room shall be altogether separate from one meant for the use of cinema-goers.

22.

Cinematograph machine.

- (i) The cinematograph machine shall be placed on firm supports of fire-resisting material fixed to the floor of the projection room. Only standard and fire proof machine shall be used and the following sub-clauses may serve as a guide, where necessary.

(ii)

The body of the cinematograph machine shall be constructed of metal or liquid with metal and asbestos; or in the latter case there shall be an air space between the metal and asbestos living. The bottom of the cinematograph machine must form a metal tray which shall be surrounded by a vertical edge at least one foot in depth.

(iii)

The cinematograph machine shall be provided with a metal shutter which can be readily inserted between the source of a light and the film gate.

(iv)

The shutter shall be immediately dropped in the event of any accident to the cinematograph machine or stoppage of the film and shall only be raised when the film is in motion for the purpose of projection.

(v)

The film gate shall be of massive construction and provided with ample heat radiating surface and the passage for the film shall be sufficiently; narrow to prevent film travelling upwards or downwards from the light opening.

(vii)

All cinematograph projectors shall be fitted with two metal film boxes of substantial construction, not more than 18 inches in diameter inside measurement, to and from which the films shall travel:

Provided that where only one film is used for the purpose of exhibition, the film box may not be more than 20 inches in

diameter.

23.

Winding room.

- (i) The winding room shall be constructed entirely of fire-resisting material and shall be large enough to allow the winder to operate freely. It shall be situated apart from the projection room and auditorium but in the case of cinemas already licensed or the construction of which has started before these rules came into force, the Licensing Authority may, for reasons to be recorded, permit the winding room to adjoin the projection room. The winding room shall have no openings in the wall so as to permit communication with the auditorium or public passage ways.

(ii)

The winding room shall be closed by a closely fitting self-closing door or fire-resisting material which shall only be opened for egress and shall remain closed during the entire period that the entertainment is in progress. Suitable arrangements shall be made for ventilation in the winding room and one or more electric fans of suitable dimensions shall be provided by the licensee.

(iii)

Only electric light shall be used in the winding room and any lamps in proximity to the film shall be close in a stout fitting designed to prevent breakage of the bulb.

(iv)

Sports shall be chain or gear driven and films shall be so wound upon spools that the wound film shall not at any time reach or project beyond the edges of the flanges of the spool.

(v)

The winding of films shall not be carried out in the projection room while an exhibition is in progress.

(vi)

All films which are not in use shall be kept in prescribed containers specified in the Cinematograph Films Rules, 1948.

(vii)

Exception a films which is being wound or stored, no inflammable article shall unnecessarily be taken into or be allowed to remain in the winding room

(viii)

All cinemas in permanent building shall, without exception, be required to provided and use a winding room in accordance with the above requirements.

24.

Film storage.

- For the storage and transport of cinematograph films having a nitro-cellulose base, the Cinematograph Films Rules, 1948, made by the Central Government under the petroleum Act, 1934 (XXX of 1934), shall apply.

25.

Electrification.

(1)

(General)

- (i) No ill minant other than electric light small be used in cinematograph projector.

(ii)

The electric installation in general shall conform to the "Regulations for Electric Equipment of Buildings" issued by the institute of Electrical Engineers, England, and the Indian Electricity Rules, 1937, in so far as they are applicable.

(iii)

Where a clear writing a leading in wires of feeding fans or pendant lights run on wooden beams, or other inflammable material, they shall run in conduit so as to resist fire in the event of short circuit.

Wiring shall be done in the manner specified hereunder.

(2)

Projection Room -

(i)

Cables for projectors shall be taken as separate circuits from the supply side of the main fuse in general lighting circuit;

(ii)

An efficient doubt pole iron clad switch shall be fitted within the projection room in the projectors circuit;

(iii)

Within the projection room the insulating material of all electric of all electric cables including the leads of the pendant lights and fans shall be covered with fire-resisting material;

(iv)

The wiring in the projection room shall be in seamless screwed conduit with efficient bushes. Lead covered cables shall not be used unless enclosed in such conduits;

(v)

All switchgears, fuses, etc., shall be iron clad;

(vi)

The body of the projections switchgears, conduit, etc., shall be connected to the earth by means of not less than No. 8 Standard wire gauge copper wire;

(vii)

All resistances with the exception of resistance for regulating purposes, shall be placed outside the projection room and winding room and if reasonably practicable, also outside the auditorium.

If Placed inside the projection room or auditorium, such resistance shall be protected by a gauge wire guard or other efficient means of preventing accidental contact with films;

(viii)

Where switchboards are installed in the projection room, the space between any switchboard and the wall shall be enclosed with fire proof material in such a manner that the fire proof material in such a manner that the fire cannot spread to the wiring at the back of the switchboard;

(ix)

No electric current, except with the written sanction of the Electrical Inspector, shall be at pressure higher than 250 volts within the projection room at any time;

(x)

Not more than one-third of the general lighting shall be controlled from the projection room.

(3)

Winding Room - The above requirements for the wiring in the projection room shall apply to wiring provided in the winding room.

(4)

Emergency Light - (i) No illuminant other than electricity shall be used for emergency lights which shall have -

(a)

an independent source of supply such as batteries, or

(b)

separate main fuses where supply is generated in the premises and a separate line with a separate pole fuse where the installation is fed by the town supply and mannered separately.

(ii)

Emergency lights shall consist of -

(a)

not less than two lights of 200 watts each in the auditorium;

(b)

exit lights;

(c)

light in the doorways foyer, lobbies, verandahs, staircases, corridors and passages for all portions of the premises to which the public has access either generally or in emergency and on the extension of the building facing through-fares.

Note. - (a), (b) and (c) may be controlled by independent switches or (i), (a) may have an independent switch while (ii) (b) may be controlled by the second switch. All or both switches shall be fixed side by side.

(iii)

All emergency lights shall be controlled from switchboard installed in the convenient and easily accessible place in front of the building. None of the circuits of the emergency light shall on any account enter or be carried through the projection room or winding room;

(iv)

Boxes bearing the words "EXIT" painted (red) in three inch letters on translucent glass with dark black background shall be either mounted over each emergency exit door and shall be either connected with the emergency light circuit or fed independently by means of a battery or lighted either with at least two oil lamps, or with at least one gas burner. Such exit signs shall be kept continuously alight during entire period of a performance.

There shall be "NO EXIT" signs of the same dimensions as the exit signs enclosed into dark background and in white letters:

(v)

An efficient portable electric battery or torch with a fully protected bulb shall be kept available in one particular space and in the enclosure and also in the place used for winding film throughout the performance and during all winding or re-winding operations.

Besides the normal lighting system installed in the premises, such other lights as may be acquired by the Electric Inspector shall be provided for safe exit of the audience in emergency. Each member of the staff controlling admission to the auditorium and each operator shall be provided with an electric torch in working condition.

(5)

Motor Room - (i) The wiring shall comply with the requirements of the Indian Electricity Rules, 1937, as amended from time to time;

(ii)

A shock restoration chart which may be obtained on payment from the Superintendent, Printing and Stationary, Uttar Pradesh Allahabad, shall be provided and hung in a conspicuous place.

26.

Operators.

- (i) At least two operators and one additional operator for every additional machine holding valid permits shall be engaged in manipulating each projector and no other person shall be allowed within ten feet of the machine during the exhibition except the licensee himself or any technician authorised in writing by the licensee. It shall be the sole duty of one of the operators to take charge of the films after they have passed through the machine. The other operators shall be in charge of the machine and the projection room or operating box.

(ii)

An operator's permit shall be granted by the Licensing Authority in the form set out in Appendix II, and a fee of Rs. 20 shall be chargeable for each such permit. No fee shall, however, be charged in respect of permits issued to operators in Government employment.

(iii)

A permit shall not be granted to operator unless he -

(a)

possesses a working knowledge of cinematograph machine and in particulars a working knowledge of the type of machine which he is to operate;

(b)

is thoroughly conversant with the rules and conditions imposed regarding precautions against fire;

(c)

is conversant with the speedy and effective method of dealing with an outbreak of fire

(d)

is proficient in the handling, winding, repairing and cleaning of films.

27.

Period and extent of licences to travelling cinemas.

(1)

The Licensing Authority may grant a licence to travelling cinema initially for a period not exceeding six months.

(2)

the licence granted under sub-section (1) may be extended for a further period not exceeding six months provided the following conditions are fulfilled -

(a)

during the period from April 1 to October 15 ceiling fans, in such numbers and of such size as may be approved by Licensing Authority are provided in the auditorium;

(b)

at least two power driven exhaust fans of not less than 24 inches size are provided in the auditorium;

(c)

on three sides of the auditorium a twelve feet high wall of a non-inflammable material like tinsheets, mud or mortar or bricks is provided; (d) all exit doors provided in the auditorium are according to the specification laid down in sub-rule (15) of Rule 8 and in proportion to its seating capacity that is one door for every 150 persons;

(e)

if the roof of the auditorium is covered by a tent or any other cloth, such cloth shall not touch the ground on any side except towards the screen. The tent shall, however, be fixed securely to pegs on the ground;

(f)

chairs or benches shall be provided for all the classes and a space of 15 inches shall be kept between the rows;

(g)

the screen and cinematograph apparatus shall be so maintained as to ensure satisfactory visibility and audibility;

(3)

The license granted under sub-rule (1) or extended under sub-rule (2) shall be valid only within the territorial jurisdiction of the licensing authority.

(4)

In granting or extending the licence, preference shall be given to licensees who keep their own generators and provided coolers in the auditorium.

28.

Grant of licence for travelling cinemas.

(1)

A person desirous of obtaining a licence for a travelling cinema shall apply to the District Magistrate within whose jurisdiction the exhibition is proposed to be given and shall attach to his application a plan and description of the building. The plan shall show the seating arrangement in the auditorium with exits, gangways, passages and structures (if any).

(2)

if a licence is granted, the plan and description aforesaid duly corrected or amplified where necessary and certified by the Licensing Authority, shall be attached to the licence. The terms and conditions of the licence shall be liable to modifications by the Licence Authority at any time and this fact shall be stated in the licence, which along with the plan and description shall be produced on demand by any person authorised to inspect the cinema.

29.

Enclosure for travelling cinemas or special cinematograph exhibition.

- A "Temporary enclosure" shall fulfill the following requirements:

(i)

Construction - It shall consist of a smoke-proof box constructed of sheet iron or steel on a substantial framework and securely fastened together. The internal height from the floor to roof shall be at least ten feet. The floor shall be 48 square feet if one machine is operated and 24 square feet for every additional machine shall be necessary. The room shall be of such width as may allow sufficient space behind the machine for operators to pass easily. The building shall in every other respect conform to the requirements of a projection room in a permanent building: Provided that, if the temporary enclosure is kept in situ or stored on the premises and does not travel with a portable apparatus thereby avoiding risk of breakage, such enclosure may be of asbestos sheeting or other type of fire-resisting material on a substantial fire-resisting framework, the type of fire-resisting material used shall be approved by the Regional fire Officer.

(ii)

Electrical and other necessary apparatus - All apparatus within a temporary enclosure shall likewise satisfy the requirements prescribed for similar apparatus in a permanent building except that such apparatus may be of a portable type.

(iii)

General working - The rules regarding fire-fighting appliances, prohibition of inflammable material, smoking, lights, matches, film re-winding and non-admittance of persons other than operators, the licensee or technician, prescribed for projection rooms in permanent building shall apply to temporary enclosure.

30.

For precautions for auditorium cinemas and special cinematograph exhibition.

- Rules 16 and 17 will apply mutatis mutandis in the case of travelling cinemas also.

31.

Inspection of travelling cinemas by Electric Inspector.

- (i) No licence shall be granted to travelling cinema till the Electric Inspector to Government has, after inspection, certified that the equipment is mechanically safe and is provided with adequate safety apparatus:

Provided that if the Electric Inspector is unable so to certify before the date on which it is proposed to exhibit the films, the Licensing Authority may, after satisfying himself that the inspection fee has been deposited, that the licensee has furnished a copy of his tour programme and that the provisions of Rules 31 and 32 have been complied with, grant a provisional licence. The tour programme shall forthwith be sent by the applicant to the Electric Inspector to Government and shall arrange to carry out his inspection as soon as possible thereafter

(ii)

All travelling cinemas whose stay in the district is likely to extend beyond one month, shall have their installations inspected by the Electric Inspector to Government.

(iii)

The fees, as may be prescribed through notification by the State Government from time to time, shall be levied and credited to the State Government for every initial inspection by the Electric Inspector to Government and also for every subsequent inspection rendered necessary by the detection of defects at a previous inspection which in the opinion of the Electric Inspector make the installation unsafe.

32.

Refusal of licence to travelling cinemas, if in dangerous proximity to other building.

- The Licensing Authority may refuse a licence to a travelling cinema if in his opinion any portion of the building or structure is in dangerous proximity to any other building.

33.

Pandal used during special cinematograph exhibition or by travelling cinemas.

- (i) In every pandal constructed of inflammable material there shall be kept on each side an opening at least seven feet high and eighteen feet wide. The opening may be closed by lattis fixed on split bamboo frame, fastened by twine on the inside but so as to be easily removable.

(ii)

doors and openings not ordinarily in use may be covered or closed by mats, screen or similar material so as to prevent removal by light pressure from inside the building or structure.

34.

Fencing in vicinity of temporary building.

- No external fencing shall be allowed within ten feet of a temporary building.

35.

Notice for special cinematograph exhibition.

- No cinematograph exhibition shall be given in any premises where such exhibition is not a regular feature, unless notice has been given at least ten clear days before exhibition is due, to the licensing Authority by the licensee of such premises.

36.

Exemption of special cinematograph exhibition from the provisions of the rules.

- Where a special cinematograph exhibition is to be given in an institution, club or other place and it is not practicable to provide therefore a fire proof enclosure, the Licensing Authority may, for reasons to be recorded, dispense with the requirements of any of the foregoing rules by specification in the licence. A space of six feet shall, however, be railed off round the cinematograph apparatus if the provisions applicable to temporary enclosure are for any reasons relaxed. No drapery and no unprotected combustible material other than film or that composed by the floor, shall be within six feet of the cinematograph apparatus. Before granting any such licence the Licensing Authority shall ensure that adequate precautions are taken against a probable outbreak of fire and for the safety of the film.

37.

Inspection of cinemas.

(1)

In addition to the initial inspection for getting a certificate referred to in Rule 5, every permanent building with electric installation shall be inspected by the Electric Inspector or his representative once every year; if at any such inspection any defects in the installation are noticed he may make further inspections at any time of the year to satisfy himself that the management has removed defects satisfactorily.

(2)

The fees, as may be prescribed through notification by the state Government from time to time, for initial and annual inspections and any subsequent inspection, rendered necessary by the existence of defects at the initial or annual inspection, by the Electric Inspector or his representative, shall be payable by the management and shall be credited to the revenues of the State.

(3)

Besides the inspection made before the grant of a licence, the Licensing Authority shall inspect or cause to be inspected any cinema within his jurisdiction at such intervals as it may deem necessary.

(4)

An inspection book shall be maintained by the licensee in which all such inspection notes shall be recorded.

38.

Removal of defects.

- The licensing Authority shall cause notice to be given to the licensee requiring him to remove the defects ascertained within a period which shall be prescribed in the notice.

39.

Fees for Cinematograph licence.

- The fee payable by the licensee for the grant or renewal of a permanent or temporary licence under the Act or for the issue of a duplicate copy thereof shall be liued at the following rates sacal viz.

(i)

For the grant or renewal of a permanent licence for permanent cinema in a local area having population -

(a) Upto one lac -

Rs. 1000/ (One thousand) per month or part there

of.

(b) More than One lac -

Rs. 1500/ (One thousand Five Hundred) per month

or part thereof.

(ii)

For the grant or renewal of a temporary licence for travelling cinema for a period -

Rs.

(a) not exceeding one month

150.00

(b) exceeding one month but not Exceeding three

months.

450.00

(c) exceeding three moths but not Exceeding six

months.

900.00

(iii)

Fee for the issue of a duplicate copy of permanent of temporary licence to the licensee shall be 75 percent of the respective fee for the original licence as prescribed above.

39A.

Fee for inspection of places proposed for construction of permanent building.

- The fee payable by the applicant for inspection of site plans and building specifications. Under Rule 3 shall be paid at the rate of Rs. 2000 per application.

40.

An application for renewal of licence shall be make one month before the date of expiry of the licence failing which a

penalty of Rs. 100 shall be leviable in addition to the renewal fee. The period of validity of permanent licences which is for years as provided in Rule 9 shall expire on March 31 each year.

41.

Control of sound from cinemas.

- When granting or renewing any licence the Licensing Authority may prescribe the distance beyond which sound shall not travel from the cinema. Licensees shall not cause noise outside cinema by the use of loudspeakers, gramophones, trumpets or drums, etc.

42.

Booking office.

- Booking offices may be so situated as not to cause any overcrowding in the side of varanda and main entrance if necessary a separate window with sufficient standing space protected by rail for the use of ladies only may be provided if so required by the Licensing Authority.

43.

Revocation or suspension of licence.

- (i) The Licensing Authority may at its discretion revoke or suspended the licence granted to any cinema within its jurisdiction if it is satisfied -

(a)

that the licensee is responsible for a breach of one or more provisions of the Act, or these rules, or any condition of the licence,

(b)

that any unauthorised alteration is made in the building or the seating arrangement or enclosure, or

(c)

that the building and installations are not maintained in proper order, or

(d)

that the licensee has failed without sufficient cause to comply with any direction given under the Act, or under these rules by an authority competent to issue such direction, or

(e)

that the cinema is used or conducted in a manner prejudicial to the public interest.

(ii)

A licensee aggrieved by an order passed under the preceding clause may appeal to the State Government within a period of thirty days from the date of Service of such order.

(iii)

The order shall be deemed to be duly served if it is tendered to the licensee, or, where in the opinion of the Licensing Authority personal service cannot be effected, if a copy of the order is affixed at a prominent place on the premises owned or controlled by the licensee.

44.

Imposition of composition charge while granting exemption under Section 10 of the Act.

– The composition charges payable under Section 13(2) (aa) of the Uttar Pradesh Cinemas (Regulation) Act, 1955 while granting exemption from the provisions of specific rules under Section 10 of the Act, shall be under on such conditions and restrictions as may be imposed.

The exemption shall come into force only after the composition charge has been deposited in the Government treasury and the conditions and restrictions have been complied with.

SI No.

Exemption from rules

Composition chargeRs.

1.

Rule 3(3)

Rs. 50,000

2.

Rule 8(2)

Rs. 35,000

3.

Rule 8(3)

Rs. 40,000

4.

Rule 14(2)

Rs. 45,000

5.

Rule 18

Rs. 15,000

Notifications

Notification No.20 - M (47)(1)-76,dated May 19, 1977. - In exercise of the power under clause (vii) of Rule 2 of the Uttar Pradesh Cinematograph Rules, 1951 the Government is pleased to appoint, with effect from the date of publication of this notification in the official Gazette, the entertainment Tax, Commissioner, Uttar Pradesh, concurrently with the District Magistrate, as the Licensing Authority, for the purpose of Rule 43 of the said rules for the whole of Uttar Pradesh.

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Translation